Operating rules

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The pilot in command

- Final authority for the flight. In an in-flight emergency needing immediate action, deviate from any Part 91 rule as far as needed, and send a written report if the FAA asks (91.3).
- Before every flight, become familiar with all available information; for a flight not in the vicinity of an airport, that includes weather reports and forecasts, fuel requirements, and alternatives if the flight can't be completed (91.103).
- No careless or reckless operation that endangers life or property (91.13). Drop nothing that creates a hazard; dropping is allowed with reasonable precautions against injury or damage (91.15).

Right-of-way (91.113)

Aircraft in distress	Over all other traffic
Converging, different categories	**Balloon over any other category**, gliders included. Then: glider over powered aircraft; an aircraft towing or refueling over other powered aircraft; airship over the rest (91.113(d)).
Two balloons converging at about the same altitude	The one on the other's right
Head-on, or nearly so	Each pilot alters course to the right (91.113(e)) *Pilot's note (Brian Lynch): a balloon can't turn, so in a balloon you climb, descend, or brace.*
Overtaking	The one being overtaken has it; the overtaking pilot alters course to the right to pass well clear (91.113(f))
Landing	An aircraft on final approach or landing has it over aircraft in flight or on the surface. Of two approaching to land, the lower has it, but may not cut in front of or overtake one on final (91.113(g)).

Right-of-way never ends the duty to see and avoid. The pilot giving way may not pass over, under or ahead unless well clear (91.113(b)).

By custom, not regulation: the lower balloon has the right-of-way. The pilot below can't see you through the envelope. Treat it as seriously as a written rule, and before a steep climb confirm with your crew or other pilots that it is clear above you.

Balloon Flying Handbook: "There is an unwritten rule in ballooning (not regulatory) that the balloon below has the right of way (due to lack of visibility above)." (FAA-H-8083-11B, p. 6-18)

Minimum altitudes (91.119)

Except when necessary for takeoff or landing:

Anywhere
High enough for an emergency landing without undue hazard to people or property below

Congested area or open-air crowd
1,000 ft
above the highest obstacle within 2,000 ft horizontally

Elsewhere
500 ft
above the surface. Over open water or sparsely populated areas: no closer than 500 ft to any person, vessel, vehicle or structure.

No balloon exception: 91.119(d) covers only helicopters, powered parachutes and weight-shift-control aircraft.

Also

- **Alcohol and drugs (91.17):** no acting as a crewmember within **8 h** of a drink, while under the influence, at **0.04** alcohol concentration or more, or on a drug that impairs. Except in an emergency, carry no one who appears intoxicated.
- **Near other aircraft (91.111):** never close enough to create a collision hazard. Formation flight only by arrangement with each pilot, and never with passengers for hire.
- **Lights (91.209):** lighted position lights from sunset to sunrise.

Sources: 14 CFR 91.3, 14 CFR 91.13, 14 CFR 91.15, 14 CFR 91.17, 14 CFR 91.103, 14 CFR 91.111, 14 CFR 91.113, 14 CFR 91.119, 14 CFR 91.209, FAA-H-8083-11B Ch. 7 (minimum altitudes), FAA-H-8083-11B p. 6-18 (the balloon below: an unwritten rule, not regulatory). Original card, not an FAA document. Study aid, not for navigation.